

JAY K. GOLDBERG [JG-1294]
GOLDBERG & ALLEN, LLP
49 West 37th Street, 7th Floor
New York, New York 10018
212-766-3366

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

-----X 15 CV 9624
ANTHONY ROSENFELD,

Plaintiff,

COMPLAINT

- against -

**PLAINTIFF
DEMANDS A
TRIAL BY JURY**

POLICE OFFICER CRAIG MARSIGLIA, SHIELD 20405,
POLICE OFFICER JOHN DOE,

Defendants,

-----X

PARTIES, JURISDICTION and VENUE

1. Plaintiff, ANTHONY ROSENFELD, is a 38 year old male, who, at all times relevant to this action, was a resident of New York, New York.

2. Upon information and belief, Defendant POLICE OFFICER CRAIG MARSIGLIA, SHIELD 20405, was at all relevant times an officer employed by the New York Police Department ("NYPD") assigned to the Transit Division. All actions by MARSIGLIA complained of herein were taken in the course of his employment and under color of law. MARSIGLIA is being sued in both his individual and official capacities.

3. Upon information and belief, Defendant POLICE OFFICER JOHN DOE, a fictitious name of an unidentified person, was at all relevant times an officer employed

by the NYPD, assigned to the Transit Division. All actions by DOE complained of herein were taken in the course of his employment and under color of law. DOE is being sued in both his individual and official capacities.

4. Original jurisdiction of this Court is founded upon 28 U.S.C. §1331, et seq., specifically 28 U.S.C. § 1343.

5. Venue is properly laid in this District pursuant to 28 U.S.C. §1391(b).

6. The instant action is commenced within three years of the date of accrual of all causes of action.

FACTS GIVING RISE TO THE CLAIMS

7. On November 6, 2015, at approximately 9:40 p.m., Plaintiff entered the uptown Lexington Avenue line subway at Fulton Street in New York County.

8. At that time, Plaintiff was subjected to an arrest by Defendants MARSIGLIA and DOE.

9. While taking Plaintiff into custody, Defendants subjected Plaintiff to an excessive degree of physical force, including striking him in the face with either fists or with a blunt instrument.

10. The use of excessive force resulted in Plaintiff sustaining, among other injuries, fractures to: the right zygomaticotemporal arch; the right posterolateral orbit; and, the right posterolateral antral wall.

11. Plaintiff remains in significant pain, suffers from residual numbness and continues to seek medical treatment.

FIRST CLAIM

(Excessive Force: §1983)

12. Pursuant to Rule 10(c), Plaintiff repeats and realleges each and every allegation of paragraphs 1 through 11 of the Complaint as if incorporated and reiterated herein.

13. Defendants, by intentionally and excessively striking Plaintiff about the face and head, used excessive force in the performance of their duties and thereby violated Plaintiff's rights under the Fourth, Eighth and Fourteenth Amendments of the United States Constitution under color of law.

14. By reason thereof, Defendants violated 42 U.S.C. §1983 and caused Plaintiff to suffer physical injuries, emotional distress, mental anguish, economic damages and the loss of his constitutional rights.

DEMAND FOR A JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the Plaintiff demands judgment against Defendants as follows:

- i) On the first claim, actual and punitive damages in an amount to be determined at trial;
- ii) Statutory attorney's fees and disbursements pursuant to 42 U.S.C. §1988, and costs of this action; and
- iii) Such other relief as the Court deems just and proper.

Dated: New York, New York
December 7, 2015

Goldberg & Allen, LLP
Attorneys for Plaintiff

By:

Jay K. Goldberg [JG-1294]
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 766-3366